

INDIVIDUALS WHO MAY BE ADMITTED FREE

Individuals who meet the age and residency requirements of Virginia Code shall be admitted for a free education in Loudoun County Public Schools (LCPS). Students that do not meet the age and residency requirements may also be eligible for a free education.

A. Free Admission for Resident Students.

1. Requirements. Residents of Loudoun County who have not completed a high school education and achieved a high school diploma or equivalent in the United States or another country, are entitled to a free public education regardless of immigration status. Proof of age and residency may be required prior to admission to school. In addition, certain health requirements must be met and the student's parent, guardian, or other person having control or charge of the student must provide a signed statement or affirmation that indicates whether the student has been expelled from their former school, public or private, for an offense in violation of the school board's policies relating to weapons, alcohol, or drugs, or for the willful infliction of injury to another person. This statement shall be maintained as a part of their scholastic record.

2. Age of Eligibility. Any person who will have reached five years of age on or before September 30 of the school year and who has not reached the age of twenty years on or before August 1 of the current school year is eligible for free education, unless one of the following exceptions apply:

- a. Individuals whose second birthday falls on or before September 30, and who have not reached their 22nd birthday on or before September 30 (two to 21, inclusive) in accordance with the Code of Virginia. A child with a disability whose 22nd birthday is after September 30 remains eligible for the remainder of the school year.
- b. LCPS students who turn 20 years of age on or before August 1 of the school year and who desire to complete their high school program may be allowed to continue to attend school and take up to 8 credits for one additional year by the Division Superintendent or designee without payment of tuition, provided they meet the following criteria:
 - (i) Demonstrate a serious intent to complete high school.
 - (ii) Demonstrates regular attendance.
 - (iii) Agree to abide by all rules for students.

Failure to maintain the above standards shall be cause for the

INDIVIDUALS WHO MAY BE ADMITTED FREE

Division Superintendent to rescind the student's permission to complete classes at their regular high school program.

- c. LCPS students who are eligible for Language Instruction Educational Program (LIEP) services, who entered school in Virginia for the first time after reaching their twelfth birthday, and who have not reached 22 years of age on or before August 1 of the school year in accordance with § [22.1-5](#) of the Code of Virginia may be admitted free. Currently enrolled English learner students who turn 21 before August 1 and desire to continue their education in LCPS will be placed in an alternative adult educational program.
 - (i) Newly enrolling students who are age 18 or older, are transferring in less than 12 earned credits, and desire to continue their education in LCPS will be placed in an alternative adult educational program.
 - (ii) Newly enrolling students who are age 18 or older and have completed all their secondary coursework in another country but are not considered graduated as they did not pass or did not sit for an assessment and desire to continue their education in LCPS will be placed in an alternative adult educational program
- d. Students must be residents of Loudoun County to be eligible to attend LCPS free of tuition charges unless they qualify under McKinney Vento or meet one of the criteria under non-resident students.

3. Residency. Students under the age of eighteen years are residents if they meet one of the following requirements:

- a. Be actually residing with a natural parent or parent by legal adoption who actually resides in Loudoun County.
- b. If the parents are deceased, be living with a person in loco parentis who actually resides in Loudoun County.
- c. If the parents are unable to care for the student and the student is living, not solely for school purposes, with another person who actually resides in Loudoun County and is the court-appointed guardian or has legal custody of the student or is acting in loco parentis under a placement for adoption by a person or entity

INDIVIDUALS WHO MAY BE ADMITTED FREE

authorized to do so under § [63.2-1200](#) of the Code of Virginia or, is an adult relative providing temporary kinship care as that term is defined in § [63.2-100](#).

- d. Be living in Loudoun County, not solely for school purposes, as an emancipated minor.
- e. Be living with an individual who is defined as a parent under the law, not solely for school purposes, under a military Special Power of Attorney executed under Title [10, U.S.C. §1044b](#), by the custodial parent while such custodial parent is deployed outside of the United States as a member of the Virginia National Guard or as a member of the United States Armed Forces.

Students eighteen years of age or older may establish their own residence in Loudoun County.

4. Students Experiencing Homelessness or in Foster Care. Immediate enrollment shall occur for a homeless child, students placed in foster care or youth as defined in Virginia law and federal law even if the student is unable to produce the required records for enrollment. The parent or guardian of the child or youth shall be referred immediately to the LCPS McKinney-Vento Liaison for students that may qualify as McKinney Vento or to the Senior Registrar for any student placed in foster care.

5. Students with Military Parents. Children covered under the Interstate Compact on Educational Opportunities for Military Children “shall be eligible for enrollment in the public schools of Virginia provided that the documents required by §§ [22.1-3.1](#) and [22.1-3.2](#) are provided and subject to the authority of a local education agency to exclude such children from attendance pursuant to § [22.1-277.2](#) or if such children have been found guilty or adjudicated delinquent for any offense listed in subsection G of § [16.1-260](#) or any substantially similar offense under the laws of any state, the District of Columbia, or the United States or its territories.” Furthermore, school divisions are prohibited from charging tuition where the child is in the care of a noncustodial parent or is in the care of a person standing in loco parentis. Such children may also continue to attend the school in which they were enrolled when residing with the custodial parent.

The Interstate Compact provides that, upon receipt of an unofficial education record by a school division in the receiving state, the receiving school “shall enroll and appropriately place the student based on the information provided in the unofficial records pending validation by the official records, as quickly as possible.” Affected states have 10 days or a reasonable time frame determined by Compact rules to transfer official records to a receiving school. Transferring students shall be allowed to

INDIVIDUALS WHO MAY BE ADMITTED FREE

continue their enrollment at the grade level in the receiving state commensurate with the grade level in the sending state, including kindergarten, regardless of any minimum age requirements.

Children of military families, without documentation of immunizations, should be immediately enrolled and shall have up to 30 days from the date of enrollment to obtain any immunizations required by the receiving state unless otherwise provided for under School Board Policy [8410](#), Immunization Regulations.

6. Admission of Students who are Children of Certain Federal Employees. A student transferring from another school shall be allowed to enroll in the school division of the student's intended residence if documentation is provided, at the time of enrollment, of Title 22 or 50 orders of the federal employee parent. Documentation indicating a permanent address within the school division shall be provided to the school division within 120 days of a student's enrollment or tuition may be charged, including tuition for the days since the student's enrollment. Students eligible to enroll in a school division pursuant to this section may register, remotely or in person, for courses and other academic programs and participate in the lottery process for charter schools and college partnership laboratory schools in the school division in which such student will reside at the same time and in the same manner as students who reside in the local school division.

B. Free Admission for Non-Resident Students.

1. Students Temporarily Living in Loudoun County. Nonresident children who are temporarily living in any of the Loudoun County shelters can enroll in LCPS without payment of tuition.

2. Students Whose Parents Move from Loudoun County. Students whose parents move from Loudoun County to another political subdivision of Virginia during the school year may be permitted by the Division Superintendent or designee to complete the semester in which they move provided that the student is left under supervision of a responsible adult or that the parents provide transportation to and from school and provided the students meet the following criteria:

- a. Have been in regular attendance.
- b. Have demonstrated acceptable behavior.
- c. Have grades that enable them to successfully complete the semester.

3. Students from Foreign Countries. High school students from foreign

INDIVIDUALS WHO MAY BE ADMITTED FREE

countries who are participating in a foreign student exchange program approved by the Division Superintendent or designee who have not met the requirements for high school graduation in their home country and are of the age of eligibility may be admitted free of tuition. Such admission shall be in accordance with the procedures outlined in Regulation 8115. The number of foreign exchange students to be admitted free of tuition to any high school shall not exceed five (5) students. Exchange students admitted in excess of the total allowed in this policy shall be required to pay full tuition.

4. Students who are Dependents of a Full-Time Active Duty Member of the Uniformed Services. Any student who does not reside within the school division, but is the dependent of a full-time active duty member of the uniformed services, is permitted to enroll in the division upon request of such student's parent, provided that:

- a. Space in the school is available;
- b. At least one parent of the student has an identification card issued by the U.S. Department of Defense;
- c. At least one parent of the student can provide evidence that the parent will be on active duty status or active duty orders, such that the parent will be temporarily transferred in compliance with official orders to another location in support of combat, a contingency operation, or a natural disaster requiring the use of orders for more than 30 consecutive days; and
- d. The student will be residing with a relative of such student who lives in this school division or will be residing in this school division within six months of requesting enrollment in the division.

C. Free Admission of Non-Public, Resident Students for Part-Time Enrollment.

1. The Loudoun County School Board acknowledges the provisions for equivalent instruction under Virginia law. The Board further observes that equivalent or acceptable alternative or home or private school instruction is not the same as the education delivered in the public school system.

2. The families of non-enrolled Loudoun County students in grades 7-12 who want to enroll their students on a part-time basis in LCPS may be eligible to do so for participation in high school credit classes in accordance with Regulation [8115-REG](#).

3. For requirements concerning health and immunizations of students seeking admission, see Policies [8125](#) and [8410](#).

INDIVIDUALS WHO MAY BE ADMITTED FREE

4. For policy governing the admission of students on payment of tuition, see Policy [8125](#).

[Former Policies 8-12, 8-13, 8-24]

Adopted: 6/26/18

Revised: 11/14/23, 6/24/25

Current Revision: 5/12/26

Leg Refs.: Code of Virginia §§ [22.1-1](#), [22.1-3](#), [22.1-3.2](#), [22.1-3.4](#), [22.1-5](#), [22.1-213](#), [22.1-253.13:1](#), [22.1-254](#), [22.1-255](#), [22.1-262](#), [22.1-263](#), [22.1-265](#), [22.1-267](#), [22.1-268](#), [22.1-269](#), [22.1-360](#), 42 U.S.C. §11431 et seq., 8VAC20-81-10;

Cross Refs.: [8125](#), Admission Requirements; [8410](#), Immunization Requirements; [8155](#), School Assignment